

Patents and Geographical Indications

Lecture-2 and Lecture-3

28th July, 2026 and July 29th, 2026

Unit-1

Meaning and Nature of Patents: -

Introduction: - A patent is one of the oldest and most important forms of intellectual property rights. It grants an inventor the exclusive legal right to make, use, sell, offer for sale, or import an invention for a specified period, in exchange for publicly disclosing the details of the invention. Patent law seeks to strike a balance between rewarding inventors for their creativity and ensuring that society ultimately benefits from the dissemination of new knowledge. The evolution of patent law reflects humanity's continuous effort to encourage scientific progress, technological innovation, industrial development, and economic growth.

Meaning of Patent: -

A patent is a statutory and territorial right granted by the government to an inventor for a novel, inventive, and industrially applicable invention. It gives the patent holder the exclusive right to prevent others from making, using, selling, offering for sale, or importing the patented invention without authorization for a limited period, generally twenty years from the filing date.

A patent does not automatically authorize the inventor to exploit the invention if other laws or regulations apply. Instead, it provides the legal right to exclude others from unauthorized commercial exploitation.

In simple terms, a patent is a reward for innovation in exchange for public disclosure of the invention.

Examples of Patents: -

- (i) **The Apple iPhone (US Design Patent D504,889):** - Granted to Apple in 2005 for the physical look and touch screen layout of their mobile device.
- (ii) **Tesla Electric Motor and Battery Tech:** - Shared openly by Tesla under open-source patent pledges to help grow electric vehicle use
- (iii) **Google Search Algorithm (US Patent 6,285,999):** - Granted to Google in 2001 for the PageRank method used to rank web search results.

- (iv) **Haldi (Turmeric) Wound Healing Use (Revoked US/Indian context):** - A historic case where CSIR India fought and stopped a foreign patent on the healing use of turmeric.
- (v) **Novel Tuberculosis Drug Processes (Cipla Formulations):** - Patents by Cipla and other Indian firms for low-cost, unique ways to manufacture life-saving drug combinations.

Definitions of Patent: -

Black's Law Dictionary: - A patent is a government grant conferring upon an inventor the exclusive right to make, use, and sell an invention for a specified period.

World Intellectual Property Organization (WIPO): - A patent is an exclusive right granted for an invention, whether a product or a process, that provides a new way of doing something or offers a new technical solution to a problem.

Indian Patents Act, 1970: - Although the Act does not provide a comprehensive definition of "patent," it establishes the legal framework under which patents are granted for inventions that satisfy the statutory requirements of novelty, inventive step, and industrial applicability.

Nature of Patents: -

- (i) **Patent is a Statutory Right:** - Patent rights arise only through legislation. There is no common law patent. An inventor receives protection only after complying with the requirements of the relevant patent statute.
- (ii) **Patent is an Exclusive Right:** - A patent grants the owner exclusive rights to commercially exploit the invention. Others require authorization, usually through licensing or assignment, before using the patented invention.
- (iii) **Patent is a Territorial Right:** - Patent protection is limited to the country in which the patent is granted. A patent granted in India has no automatic effect in the United States, Europe, or Japan. Separate protection must be sought in each jurisdiction, subject to applicable international treaties.
- (iv) **Patent is a Time-Bound Right:** - Patent protection is not perpetual. Under most modern patent laws, including the Indian Patents Act, the duration is twenty years from the filing date, after which the invention enters the public domain.

- (v) **Patent Encourages Disclosure:** - Unlike trade secrets, patents require inventors to disclose complete technical details of the invention. This disclosure enriches scientific knowledge and enables further research after the patent expires.
- (vi) **Patent Promotes Innovation:** - Patent protection motivates individuals, universities, and industries to invest in research and development by providing the opportunity to recover investments through exclusive commercialization.
- (vii) **Patent is Transferable:** - Patent rights are valuable intangible assets. They may be assigned, licensed, inherited, mortgaged, or otherwise transferred, enabling inventors to monetize their innovations even if they do not manufacture the invention themselves.
- (viii) **Patent is a Commercial Asset:** - Patents contribute significantly to business value. Companies use patent portfolios to attract investment, negotiate licensing agreements, gain competitive advantages, and enhance market position.
- (ix) **Patent Balances Private Rights and Public Interest:** - Patent law seeks to balance the interests of inventors with those of society. While inventors receive temporary exclusivity, the public ultimately benefits from the disclosure of new knowledge and the eventual availability of the invention for free use after patent expiry. Mechanisms such as compulsory licensing further ensure that patents do not unduly hinder access to essential technologies or medicines.
- (x) **Patent Rights are Subject to Conditions:** - Patent rights are not absolute. Governments may impose limitations in the public interest, including compulsory licensing, government use, revocation for non-working, and exceptions for research and experimental purposes.

Conclusion: - A patent is a vital legal mechanism that promotes scientific and technological progress by granting inventors temporary exclusive rights over their inventions. It protects genuine innovations while encouraging the disclosure of technical knowledge for the benefit of society. The nature of patents reflects a careful balance between rewarding inventors for their creativity and ensuring that technological advancements eventually become part of the public domain. Consequently, the patent system plays a crucial role in fostering research, industrial development, economic growth, and the advancement of knowledge in both national and international contexts.